

# FEDERAL MARITIME COMMISSION

## Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

**DOCKET NO. 25-08**

Served: July 18, 2025

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**ORDER OF:** Richard AMBROW, *Administrative Law Judge*.

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### **ORDER DENYING MOTION TO STAY OR FOR CLARIFICATION OF MOTION DEADLINES PENDING CADR PROCEEDINGS**

On July 16, 2025, Respondent filed a Motion to Stay or for Clarification of Motion Deadlines Pending CADR Proceedings (“Motion to Stay”). In it, Respondent seeks to stay its deadlines to respond to Complainant’s outstanding motions until after the parties’ scheduled session with CADRS, which Respondent states will occur on July 22, 2025. In the alternative, Respondent requests an order clarifying and consolidating deadlines for all pending motions, with deadlines to begin no earlier than seven business days after the session with CADRS.

Under Commission Rule 71(a), before a party files a non-dispositive motion, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought, and the moving party “must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.” (46 C.F.R. § 502.71(a)). Although Respondent states it made “good faith efforts to confer regarding these motions[,]” it is unclear if Respondent conferred with Complainant regarding the present Motion to Stay. (Motion to Stay, at 3). Complainant filed a Response to Respondent’s Motion to Stay or for Clarification of Motion Deadlines Pending CADR Proceedings (“Motion to Stay Response”), and denied that any such conferral occurred regarding the Motion to Stay. (Motion to Stay Response, at 6-7).<sup>1</sup> Regardless, despite the lack of clarity, for the reasons discussed below, the Motion to Stay is **DENIED**.

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<sup>1</sup> Complainant suggests that the duty to confer in Commission Rule 71(a) is a mere “procedural formality.” (Motion to Stay Response, at 3). It is not merely a procedural formality. To the contrary, as Commission Rule 71(a) says, the duty to confer requires a “good faith effort to determine whether there is any opposition to the relief sought, and, if there is opposition, to narrow the areas of disagreement.” (46 C.F.R. § 502.71(a)). In other words, the duty to confer requires the parties to engage in a “good faith” effort to streamline litigation. For example, a reasonable extension request can be agreed to by the parties.

Complainant filed two motions to which Respondent currently owes a response. First, Complainant filed a Motion for Interim Relief to Prevent Spoliation and Intimidation (“Motion for Relief”) on Sunday, July 13, 2025. Second, Complainant filed a Motion for Summary Judgment on Wednesday, July 16, 2025.<sup>2</sup>

Under Commission Rule 71(b), a party has seven days to respond to a non-dispositive motion. (46 C.F.R. § 502.71(b)). For a dispositive motion, such as a motion for summary judgment, Commission Rule 70 says a party has fifteen days to respond, and the moving party has seven days after the response is served to file a reply. (46 C.F.R. §§ 502.70(b)&(c)).

To compute the response time, a party begins counting the day after the filing. (46 C.F.R. § 502.101). If the last day falls on a holiday or weekend, the deadline is transferred to the following business day. (*Id.*). As for the Motion for Relief, the response deadline is **July 21, 2025** (the seven-day response period began Monday, July 14, and ends Sunday, July 20, which carries over to the next business day). As for the Motion for Summary Judgment, the response deadline is **July 31, 2025** (the fifteen-day response period began on July 17).

Respondent asks for an extension to allow the CADRS process to work efficiently and to avoid the risk of needless effort and expense. (Motion to Stay, at 3). That is not a persuasive reason. Commission Rule 64 states that “unless otherwise ordered by the presiding officer, a mediation proceeding does not stay or delay the procedural time requirements set forth by rule or order of the presiding officer.” (46 C.F.R. § 502.64(c); *see also* Initial Order, at 1). Without a more concrete reason specific to this proceeding, I am not persuaded that this matter should be stayed pending any attempted mediation with CADRS.

In the alternative, Respondent asks for a single, clarified deadline due to the number of motions filed. Respondent asserts that this would promote judicial efficiency and ensure that Respondent is not litigating on multiple fronts during mediation. (Motion to Stay, at 3-4). I appreciate that Complainant filed two versions of the Motion for Relief, and three versions of the Motion for Summary Judgment. Some of these motions had procedural defects and were denied without prejudice. This could potentially be confusing. The response deadlines, however, are clearly set forth in this Order. Moreover, Respondent gives no concrete or specific reason as to why it is unable to comply with any of the deadlines.

For these reasons, the Motion to Stay is **DENIED**. Respondent must respond to the Motion for Relief no later than **July 21, 2025**. Respondent must respond to the Motion for Summary Judgment no later than **July 31, 2025**.

Richard C.  
Ambrow Jr -S

Richard Ambrow  
Administrative Law Judge

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<sup>2</sup> Complainant filed procedurally defective versions of both the Motion for Relief, and the Motion for Summary Judgment. The dates in the main text refer to the dates Complainant filed procedurally proper motions.